

**Consent for the Release of Confidential Information
By Substance Use Assessment and Treatment Providers to
Local Department of Social Services (LDSS)**

Purpose: This form is used to confirm an individual's authorization to release said individual's substance use assessment and treatment information.

Substance Use Assessment and Treatment
Provider(s): _____

LDSS Office(s): _____

LDSS Program/Caseworker: _____
I understand that the caseworker named above may be replaced by another case worker and that this consent will still apply to disclosures to the new caseworker.

Section A: Individual's Information

Last Name: _____ First Name: _____ MI: _____

Street Address: _____ Apt #: _____

City: _____ State: _____ Zip: _____

Phone: (home) _____ (work) _____

Date of Birth: ____/____/____

Section B: The Use and/or Disclosure Being Authorized

I understand that in addition to Maryland confidentiality laws, my substance use disorder records are protected under the Federal regulations that govern the following: Confidentiality and Substance Use Disorder Patient Records, 42 CFR Part 2, the Health Insurance Portability and Accountability Act of 1996 (HIPAA), and 45 CFR Parts 160, 164. Due to this law, I understand that my records cannot be disclosed without my written authorization unless specifically permitted by law.

I give authorization to the substance use assessment and treatment provider(s) named above who are currently treating me, or to whom I have been referred for assessment or services, to report to the LDSS named above, either verbally or in writing, the following information about me:

- ☐ Comprehensive substance use assessment (indicates diagnosis, clinical history, level of treatment, or whether treatment was not required);
- ☐ Referral information for type of substance use program (Early Intervention Services; Detoxification; Medication Assisted Treatment/MAT; Intensive Outpatient Program/IOP; Residential Treatment Program; Halfway House);
- ☐ Enrollment in substance use treatment program or placed on waitlist for a substance use treatment program;
- ☐ Attendance and participation in treatment;
- ☐ Treatment plan including medications;
- ☐ Dates and results of drug tests;
- ☐ DUI/DWI Court Ordered Treatment Program;
- ☐ Treatment response and progress;
- ☐ Successful completion of treatment;
- ☐ Future treatment recommendations;
- ☐ Discharge reason(s) or referral to another substance use treatment program (provide the name of the program).

I understand that the information above will be used to assist the LDSS in working with me and my family on case planning and on the coordination of services. All approved information will become part of the agency's confidential case record.

If information from treatment programs include records or details from another entity, I (☐ do ☐ do not) wish to have that information released under this authorization.

Section C: Expiration and Revocation

This authorization will expire on the date/event listed below, or one year after the date the form was originally signed.

Section 4-303(b) of the Health-General Article limits the period of time that an authorization is valid to no more than one year with limited exceptions.

Expiration: This authorization will expire (complete one):

☐ On ___/___/___

☐ On occurrence of the following event (event must be related to the individual or the purpose of the disclosure being authorized):

Right to Revoke: I understand that I may revoke this authorization at any time by giving written notice of my revocation to the Substance Use Assessment and Treatment Provider(s) named above. In order to obtain a revocation form to revoke this authorization, I understand that I may contact _____. I understand that revocation of this authorization will have no effect on the release and use of any information made prior to the Substance Use Assessment and Treatment Provider(s) receiving your written notice of revocation.

Section D: Minor

A minor, a person under the age of 18, has the same capacity as an adult to consent to treatment for or advice relating to substance use according to Maryland law (Annotated Code of Maryland, Health General Article § 20-102(c)(1) and (2).

I ☐ do ☐ do not authorize disclosure of information to a parent, guardian, or LDSS.

Minor's Printed Name

Minor's Signature

A minor's parent, guardian, or other entity may be authorized under State law to act on the minor's behalf when a minor lacks the capacity because of a developmental or mental condition, or diagnosis by a licensed professional, that impairs the minor's ability to make a rational decision on whether to consent to release of information.

By signing below, a minor's parent or guardian avers that the minor is incapable of making a rational decision regarding consent.

Mental condition, developmental delay, or diagnosis by a licensed professional that impairs the minor's ability to consent:

Printed Name and relationship to minor

Section E: Signature

To the Individual – Please read the following.

I consent to the disclosure and use of my substance use disorder information as described in Section B above. I understand this consent is voluntary.

I will not be denied services if I refuse to consent to the use of my information to anyone or any entity other than the LDSS.

I understand that the LDSS named above may not disclose any information about my substance use disorder treatment without my specific written consent unless disclosure is permitted by state law or Federal regulation, 42 CFR Part 2.

I further understand that if I consent to the LDSS redisclosing information about my substance use disorder, that my information would no longer be protected by HIPAA but would remain protected as substance use disorder treatment records under 42 CFR Part 2.

I understand that any consent I have given for the LDSS or other agencies/organizations to share general medical information about me does not apply to the redisclosure of substance use treatment records.

I have read and considered the contents of this authorization, and I confirm that the contents are consistent with my intent.

Individual's Printed Name

Individual's Signature

Date

Printed Name of Parent, Guardian, or other Entity when required

Signature of Parent, Guardian, or other Entity when required

Date

If someone other than the Individual identified in Section A is authorized to sign this consent, with the exception to Section E, that person should attach a copy of the document granting authority to sign for the Individual and complete the following:

Personal Representative's Name:

Relationship to Individual:

☐ Decline to sign: I understand that if the LDSS cannot obtain the desired treatment records that may assist in resolving the issue of whether my child or children are safe, the LDSS may have to take additional steps to ensure the safety of my child or children.

Agency Representative Signature

Date

I am entitled to receive a copy of this consent from the LDSS office identified on this form at any time by contacting the LDSS and requesting a copy of this form.